

District- Jamalpur

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Revision No. _____ of 2024

In the matter of:

An application under Section 439 read with
Section 435 of the Code of Criminal Procedure.

-And-

In the matter of:

Moniruzzaman Putu and others

.... Accused-Petitioners

-Versus-

The State

.... Opposite Party

Mr. Md. Kamal Parvez, Advocate

.... For the accused-Petitioners.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 23rd January 2024

This application under Section 439 read with Section 435
of the Code of Criminal Procedure at the instance of 12
accused persons of Sessions Case No.69 of 2011 corresponding

to G.R. Case No.123 of 2010 arising out of Bakshiganj Police Station Case No.12 dated 23.06.2010 under Sections 143/341/323/326/302/114 of the Penal Code for recall of five prosecution witnesses namely PW1 Hazi Abdul Khaleque Lavlu, PW4 Faruque, PW5 Md. Md. Rezaul Karim, PW8 Md. Badsha Alam and PW9 Dhala Sheikh for cross examination.

Mr. Md. Kamal Parvez, learned Advocate for the petitioners submits that above prosecution witnesses were examined and cross examined in 2016 and the appointed Advocate for the accused-petitioners cross examined them. But it was revealed on 17.07.2023 at the time of examination of the above accused persons under Section 342 of the Code of Criminal Procedure that some important questions were not put to above witnesses. Above petitioners submitted a petition for recall of above witnesses for cross examination but the same was rejected by the learned Session Judge.

We have considered the learned Advocate for the petitioners and carefully examined all materials on record.

As mentioned above this is a case under Sections 143/341/323/326/302/114 of the Penal Code. PW1 Hazi

Abdul Khaleque Lavlu, PW4 Faruque, PW5 Md. Md. Rezaul Karim, PW8 Md. Badsha Alam and PW9 Dhala Sheikh were examined by the prosecution and all of them were cross examined by the appointed Advocates of the accused petitioners in full. After more than six years of examination and cross examination of above witnesses the accused petitioners has submitted this petition for recall above PWs for further cross examination on 17.07.2023.

We have carefully gone through the petition submitted by the above petitioners to the learned Sessions Judge on 17.07.2013 for recall of above witnesses but we could not find out any reason or cause for recall of above witnesses nor any list of questions were attached with above petition which the defence wants to put to above prosecution witnesses.

Above case was fixed for arguments hearing.

On consideration of above materials on record we are unable to find any infirmity or illegality in the impugned order passed by the learned Senior Sessions Judge, Jamalpur.

As such, this application under Section 439 read with Section 435 of the Code of Criminal Procedure is rejected summarily.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER